

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4338

By: Moore

AS INTRODUCED

An Act relating to the Oklahoma Brine Development Act; amending 17 O.S. 2021, Section 501, which relates to the purpose of the act; modifying purpose of act; amending 17 O.S. 2021, Section 502, which relates to definitions; modifying definitions; defining terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 17 O.S. 2021, Section 501, is amended to read as follows:

Section 501. The Legislature finds that it is desirable and necessary to authorize and provide for unitized management, operation, and further development of brine and associated solution gas, to the end that a greater ultimate recovery of brine and solution gas may be had, waste prevented, and the correlative rights of owners therein be protected. The Legislature also finds that it is desirable public policy to encourage reuse, recycling and reclaiming of produced water. It is further found to be in the public interest to foster, encourage and promote the development and

1 production in the State of Oklahoma of brine and solution gas and to
2 authorize and provide for the operation and development of unitized
3 brine and solution gas properties, and to authorize the Commission
4 to regulate brine and solution gas production.

5 SECTION 2. AMENDATORY 17 O.S. 2021, Section 502, is
6 amended to read as follows:

7 Section 502. As used in ~~this act~~ the Oklahoma Brine Development
8 Act:

9 1. "Commission" ~~shall mean~~ means the Oklahoma Corporation
10 Commission ~~of Oklahoma~~;

11 2. "Person" ~~shall include~~ means any individual, partnership,
12 corporation or association of whatever character;

13 3. "Common source of supply" ~~shall include that~~ means the area
14 ~~which~~ that is underlain, or which from geological or other
15 scientific data, or from drilling operations, or other evidence,
16 appears to be underlain by a common accumulation of brine; ~~provided,~~
17 ~~that, if.~~ If any ~~such~~ area is underlain or appears from geologic or
18 other scientific data, or from drilling operations, or from other
19 evidence to be underlain by more than one common accumulation of
20 brine separated from each other by a strata of earth and not
21 connected with each other, then ~~such~~ the area, as to each said
22 common accumulation of brine, shall be deemed a separate common
23 source of supply;

1 4. "Brine" ~~shall mean~~ means subterranean saltwater and all of
2 its constituent parts and chemical substances therein contained,
3 including, but not limited to bromine, magnesium, potassium,
4 lithium, boron, chlorine, iodine, calcium, strontium, sodium,
5 ~~sulphur~~ sulfur, barium or other chemical substances produced with or
6 separated from ~~such~~ the saltwater. Brine produced as an incident to
7 the production of oil or gas, unless ~~such~~ the brine is saved or sold
8 for the purposes of removing ~~chemical substances~~ its constituent
9 elements therefrom, as defined by the Oil and Gas Produced Water and
10 Waste Recycling and Reuse Act, shall not be considered brine for the
11 purposes of this act. Gas, whether found in solution or otherwise,
12 shall not be included within the meaning of the term "brine";

13 5. "Brine owner" ~~shall mean~~ means any person entitled to share
14 in the proceeds from the sale of brine production, the usable
15 resources recovered from the brine, or the effluent;

16 6. "Brine well" means a well drilled or operated for the
17 primary purpose of extracting brine and shall not include a well
18 drilled or operated for the primary purpose of producing oil or gas;

19 7. "Solution gas" ~~shall mean~~ means all gas produced from brine
20 wells from the brine common source of supply within the unit area;

21 ~~7.~~ 8. "Solution gas owner" ~~shall mean~~ means any person entitled
22 to share in the proceeds from the sale of solution gas;

1 ~~8.~~ 9. "Owner" or "owners" means, unless a more specific term is
2 used, ~~shall mean~~ any person or entity who qualifies as either a
3 brine owner or a solution gas owner;

4 ~~9.~~ 10. "Operator" ~~shall mean~~ means a person who:

5 a. has the right to drill into and produce from any brine
6 common source of supply and to appropriate that
7 production, either for ~~himself~~, the operator or for
8 ~~himself~~ the operator and others, and is authorized by
9 the Commission to drill, or

10 b. is an operator of an oil or gas well that produces
11 brine which is saved or sold for the purpose of
12 extracting constituent elements from the produced
13 water, as defined by the Oil and Gas Produced Water
14 and Waste Recycling and Reuse Act;

15 ~~10.~~ 11. "Effluent" ~~shall mean~~ means the liquid remaining after
16 extraction of the chemical substances from brine;

17 ~~11.~~ 12. "Brine production unit" or "unit" ~~shall mean~~ means each
18 separate specific area of land so designated by order of the
19 Commission for production of brine and associated solution gas ~~and~~
20 ~~the~~ from brine wells, including the related injection of effluent;

21 ~~12.~~ 13. "Injection well" ~~shall mean~~ means a well authorized by
22 the Commission for the injection of effluent or other solutions; ~~and~~
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1 ~~13.~~ 14. "Manufacture" ~~shall mean~~ means the complete process of
2 drilling, completing, equipping and operating production and
3 injection wells and of extracting and packaging brine; and

4 15. "Oil or gas well" means a well drilled or operated for the
5 primary purpose of extracting oil or gas as those terms are defined
6 in Title 52 of the Oklahoma Statutes.

7 SECTION 3. This act shall become effective November 1, 2026.

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